

Opinion of SOTOMAYOR, J.

Here, the only possible special factor is that Boule's property abuts an international border. Boule's case, however, is a far cry from others in which the Court declined to extend *Bivens* for reasons of national security or foreign relations. In *Hernández*, for example, a CBP agent shot and killed a Mexican child across the U.S.-Mexico border. 589 U.S., at —. The Mexican Government unsuccessfully sought extradition of the agent to Mexico, and after an investigation, the U.S. Department of Justice declined to bring charges against the agent. *Ibid.* The parents of the deceased child attempted to bring a *Bivens* action against the CBP agent, but this Court held that several "warning flags" counseled caution, including a "potential effect on foreign relations." *Hernández*, 589 U.S., at —. The Court observed that "[a] cross-border shooting is by definition an international incident," and that both the United States and Mexico had "legitimate and important interests that may be affected by the way in which this matter is handled." *Id.*, at —, —. The Court concluded that because "regulating the conduct of agents at the border unquestionably has national security implications, the risk of undermining border security provides reason to hesitate before extending *Bivens* into this field." *Id.*, at —.

The conduct here took place near an international border and involved a CBP agent. That, however, is where the similarities with *Hernández* begin and end. The conduct occurred exclusively on U.S. soil, and the injury was to a U.S. citizen. This case therefore does not present an "international incident" that might affect diplomatic relations, unlike the cross-border killing of a foreign-national child. As for national-security concerns, the Court in *Hernández* emphasized that "some [CBP agents] are stationed right at the border and have the responsibility of attempting to prevent illegal entry"; it was "[f]or th[is] reaso[n]," among others, that their conduct had "a clear and strong connection to national security." *Id.*, at —. Here, by contrast, Agent Egbert